

The Joint Electricity Regulatory Commission for Manipur and Mizoram (Preparation of Annual Report) Rules, 2010

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The Joint Electricity Regulatory Commission for Manipur and Mizoram (Preparation of Annual Report) Rules, 2010

Rule

THE-JOINT-ELECTRICITY-REGULATORY-COMMISSION-FOR-MANIPUR-AND-MIZORAM-PREPARATION-OF-ANNUAL-REPORT-RULES-2010 of 2010

Published on 21 June 2010

Commenced on 21 June 2010

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The Joint Electricity Regulatory Commission for Manipur and Mizoram (Preparation of Annual Report) Rules, 2010

Published vide Notification New Delhi, the 21st June, 2010

Ministry of Power

G.S.R. 526(E). - Whereas the States of Manipur and Mizoram have authorized the Central Government, through a memorandum of Agreement, to constitute a Joint Electricity Regulatory Commission for States of Manipur and Mizoram and to frame rules to carry out the provisions of the Electricity Act, 2003 relating to the Joint Commission;

And whereas the Central Government vide Notification No. S.O. 62(E), dated 18th January, 2005 has constituted the

Joint Electricity Regulatory Commission for Manipur and Mizoram;

Now, therefore, in exercise of powers conferred by Section 105 and clause (i) of sub-section (2) of Section 180 of the Electricity Act, 2003 (

No. 36 of 2003

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Joint Electricity Regulatory Commission for Manipur and Mizoram (Preparation of Annual Report) Rules, 2010.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

'Act' means the Electricity Act, 2003;

(b)

'Joint Commission' means the Joint Electricity Regulatory Commission for Manipur and Mizoram, constituted under Section 83 of the Act;

(c)

'Participating State' means the State of Manipur or the State of Mizoram;

(d)

'Schedule' means the Schedule annexed to these rules.

(2)

Words and expressions used and not defined in these rules but defined in the Electricity Act, 2003, shall have the meanings respectively assigned to them in that Act.

3.

Preparation of Annual Report.

(1)

Every year the Joint Commission shall prepare an Annual Report containing a summary of its activities during the previous year commencing from the 1st day of April to the 31st day of March of the following year in the form specified in the Schedule.

(2)

The Annual Report shall give an account of the activities during the previous financial year; containing, inter-alia, -

(a)

a statement of goals and objectives of the Joint Commission;

(b)

annual targets set for various activities in the background of clause (a) together with a brief review of actual performance with reference to those targets and including in particular a report on the number of cases filed before the Joint Commission during the year, number of cases disposed of, time taken to dispose of the cases and number of cases pending;

(c)

important additions/changes in the regulations of the Joint Commission;

(d)

functioning of the State Advisory Committee and other consultation with the stakeholders;

(e)

trends of important parameters such as capital cost, cost of electricity, new investment, efficiency gains;

(f)

number and details of cases in which orders regulations of the Commission were challenged in Courts/Appellate

Tribunal and the outcome of such cases; and

(g)

resolution of disputes including the disputes, pending at the end of the year.

4.

Submission of Annual Report.

- The copies of the annual report shall be forwarded by the Joint Commission to the Central Government and the Participating State Governments by the end of October each year.

Schedule

(See rule 3)

Form of Annual Report of The Joint Commission

1. The Commission in brief.

2. The mandate of the Commission.

3. Mission statement.

4. The year in retrospect.

5.

Annual accounts of the Commission showing receipts and expenditure.

6.

Outcome of Regulatory Process in terms of benefits to consumers and development of sector.

7.

Work plan for the year ahead.

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